SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 63 of 2021 (YEAR: 2021)

CORAM: N.V. RAMANA, SURYA KANT, ANIRUDDHA BOSE

Kalamani Tex
... Appellant(s) / Petitioner(s)
Versus
P. Balasubramanian
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 139 NI Act

JUDICIAL HEADNOTE & SUMMARY

Held that even if a blank signed cheque leaf is voluntarily handed over, the drawer gives implied authority to holder to fill details, attracting the presumption under Section 139.

RATIO DECIDENDI

The Court held that: Held that even if a blank signed cheque leaf is voluntarily handed over, the drawer gives implied authority to holder to fill details, attracting the presumption under Section 139. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Kalamani Tex v. P. Balasubramanian (Criminal Appeal No. 63 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 139 NI Act. Held that even if a blank signed cheque leaf is voluntarily handed over, the drawer gives implied authority to holder to fill details, attracting the presumption under Section 139.

OPERATIVE ORDER

ORDER: Decided